

DATA CENTER DEAL READINESS CHECKLIST

Before an option, lease, easement, or purchase agreement moves forward

Use this checklist after the first contact and before negotiations become document-driven.

- 1 Confirm the caller and authority.**
Record the person, company, role, contact details, and who they say they represent.
- 2 Identify the transaction requested.**
Purchase, option, lease, easement, access agreement, utility corridor, or another right.
- 3 Pin down the land involved.**
Ask for a map, approximate acreage, access route, and whether only part of the tract is needed.
- 4 Request the complete paper trail.**
Get every draft, exhibit, map, legal description, addendum, and referenced document.
- 5 Ask who pays investigation costs.**
Clarify survey, title, environmental, geotechnical, utility, appraisal, and legal-review costs.
- 6 Set entry rules before site work.**
Notice, insurance, restoration, crop and livestock protection, gates, roads, and limits on testing.
- 7 Separate option money from closing value.**
Do not treat a small option payment as compensation for tying up the property.
- 8 Ask what can delay or end the project.**
Utility capacity, zoning, water, incentives, permits, financing, and internal approval.
- 9 Protect future use of the remainder.**
Consider access, farming, grazing, drainage, homesites, minerals, hunting, and later development.
- 10 Pause before signing.**
Use independent legal, tax, appraisal, engineering, and environmental advisers as the deal requires.

MY NOTES

Which issues need an answer before the next conversation?

Who should review the proposal, and what must each adviser evaluate?